

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-015

Title 2, Chapter 7, Article B of the Chickasaw Nation Code (Chickasaw Nation Ethics in Government Act)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Elected officials of the Chickasaw Nation deem it necessary to establish standards of ethical conduct for elected officials and employees of the Chickasaw Nation.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following language to be added to Title 2, Chapter 7 of the Chickasaw Nation Code as Article B:

CHAPTER 7 ETHICS

ARTICLE B CHICKASAW NATION ETHICS IN GOVERNMENT ACT

Section 2-702.1	Title.
Section 2-702.2	Authority.
Section 2-702.3	Legislative purpose and intent.
Section 2-702.4	Definitions.
Section 2-702.5	Standards of conduct and restricted activities of public officials and employees of the nation.
Section 2-702.6	Sanctions; penalties; legal liabilities.
Section 2-702.7	Severability.
Section 2-702.8	Prior law and policies superseded.
Section 2-702.9	Effective date.

SECTION 2-702.1 TITLE.

Be it hereby enacted by the Chickasaw Tribal Legislature, that this Act shall be cited as the Chickasaw Nation Ethics in Government Act of 2002 (hereinafter referred to as this "Act"). This Act shall be codified at Title 2, Chapter 7, Article B of the Code of the Chickasaw Nation.

SECTION 2-702.2

AUTHORITY.

This Act is hereby promulgated pursuant to Article VII, Section 4 of the Chickasaw Nation Constitution whereby “The Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation.”

SECTION 2-702.3

LEGISLATIVE PURPOSE AND INTENT.

A. Purpose.

The government of the Chickasaw Nation is founded upon the consent of the governed and Chickasaw Citizens are entitled to have complete confidence in the loyalty and integrity of their government. The purpose of this Act, therefore, is to increase accountability to Chickasaw Citizens by their elected, appointed and assigned Public Officials and Employees of the Nation in exercising the authority vested or to be vested with them as a matter of public trust, by:

a. Establishing and requiring adherence to standards of conduct to avoid Conflicts of Interest, or appearance of Conflicts of Interest, as the use of Public Offices, Employment or property, tribal or U.S. Government, for private gain, the granting and exchange of favored treatment to persons, Businesses or organizations; and the conduct of activities by Public Officials and Employees of the Nation which permits opportunities for private gain or advantage to influence government decisions; and

b. Requiring Public Officials and Employees of the Nation to abstain from using any function of their office or duties in a manner which could place, or appear to place, their personal economic or special interests before the interests of the Chickasaw Nation.

B. Intent.

It is the intent of the Chickasaw Tribal Legislature that the provisions of this Act be construed and applied in each instance so as to accomplish its purposes of protecting Chickasaw Citizens from government decisions and actions resulting from, or affected by, undue influences or Conflicts of Interest.

SECTION 2-702.4

DEFINITIONS.

As used in this chapter:

1. “Affinity” means the relation among a person and the family of such person's spouse because of marriage. The degrees of Affinity are computed as are the degrees of Consanguinity.

2. “Business” includes any enterprise, organization, trade, occupation or profession whether or not operated as a legal entity for profit, including any business, trust, holding company, corporation, partnership, joint venture, or sole proprietorship, Consultant or other self-employed enterprise. "Business" also includes any Business in which a person subject to this Act or a member of such person's Immediate Family is a director, officer, partner, trustee or Employee, holds any position of management or receives Compensation or Income in any form such as wages, commission, direct or indirect investment worth more than \$1,000 or holds any ownership, security or other beneficial interest, individually or combined, amounting to more than ten percent (10%) of said Business.

3. “Chickasaw Nation” or “Nation” means the tribe of Indians located within the boundaries set forth in the Constitution of the Chickasaw Nation, being duly recognized by the Secretary of Interior of the United States of America, as a self governing, sovereign government. “Chickasaw Nation” or “Nation” is used herein to describe the lands and people of the Chickasaw Nation.

4. “Citizens” means any Chickasaw Indians by blood, whose names appear on the final rolls of the Chickasaw Nation approved pursuant to Section 2 of the Act of April 26, 1906 (34 Stat. 137) and their lineal descendants.

5. “Commission” means the Chickasaw Nation Ethics Commission.

6. “Compensation” or “Income” means any money or thing of value received, or to be received as a claim on future services, whether in the form of a fee, salary, expense, allowance, forbearance, forgiveness, interest, dividend, royalty, rent, capital gain, or any other form of recompense or any combination thereof.

7. “Confidential Information” means information which by law or practice is not available to the public at large or is deemed confidential by a Governmental Body.

8. “Conflict of Interest” means the reasonable foreseeability or appearance that any personal interest or Economic Interest of a Public Official or Employee of the Nation will be affected in any materially different manner from the interest of the general public, by any decision, enactment, agreement, award or other official action or function of any Governmental Body or political subdivision of the Nation.

9. “Consanguinity” means relationship by blood; kinship.

10. “Consultant” means a person who gives professional or expert advice or services for Compensation or Income.

11. “Constitution” means the Constitution of the Chickasaw Nation as ratified by the voters of the Chickasaw Nation on August 27, 1983, and amendments thereto.

12. “Court” means the Supreme Court or a lower court, whichever is the court of competent jurisdiction at the time the cause of action is first presented to the Commission.

13. “Employee” means any person or entity working for, or rendering or exchanging any services or performing any act for or on behalf of another person, organization or entity in return for any form of pay or other Compensation or Income or any other thing of value received or to be received anytime temporarily, permanently or indefinitely, in any capacity; whether as agent, servant, representative, Consultant, advisor, independent contractor or otherwise.

14. “Employment” means the status or relationship existing or created by and between a person designated or acting as an Employee and the person, organization, group or other entity for whom or on whose behalf any such work, acts, services or other benefit has been, is being or will be rendered or performed for pay or any other form of Compensation or Income.

15. “Economic Interest” means an interest held by a person subject to this Act and/or members of such person’s Immediate Family which is:

a. any ownership, Compensation or Income, investment, security or other beneficial interest in a Business, or

b. any Employment or prospective Employment for which negotiations have already begun.

16. “Gift” includes any gratuity, special discount, favor, hospitality, payment, loan, subscription, economic opportunity, advance, deposit of money, services, or other benefit received without equivalent consideration.

17. “Governmental Body” means any branch, entity, enterprise, authority, division, department, office, commission, council, board, bureau, committee, legislative body, agency, and any other establishment of the Executive, Legislative, and/or Judicial Department of the Nation.

18. "Immediate Family" includes spouse, father, mother, child, brother or sister or other person when identified as such by tribal customs and traditions or by proper and appropriate authorities.

19. "Ministerial Action" means an action that a Public Official or Employee of the Nation performs in a given state of facts in a prescribed manner in obedience to a mandate of legal authority, without regard to, or in the exercise of, such person's own judgment upon the propriety of the action being taken.

20. "Pecuniary" means monetary; relating to money; financial; consisting of money or that which can be valued in money.

21. "Employee of the Nation" means any employee who is temporarily, periodically, permanently or indefinitely in the Employment of the Nation and/or any Governmental Body thereof, including intergovernmental personnel.

22. "Public Office/Official." "Public Office" means those offices and positions which are elective or appointed in any Governmental Body of the Nation. "Public Official" means any person holding such office or position. "Public Official" shall also include any person who has publicly announced an intent to campaign for Public Office, initiated fundraising activities or received funds for such campaign, authorized promotion for, or filed a declaration of candidacy or a petition to appear on the ballot for election as a Public Official; and any person who has been nominated by a Public Official or Governmental Body for appointment to serve in any public capacity, position or office, but who has not yet been seated in such public capacity, position or office.

SECTION 2-702.5

STANDARDS OF CONDUCT AND RESTRICTED ACTIVITIES OF PUBLIC OFFICIALS AND EMPLOYEES OF THE NATION.

A. Conduct in conformity with applicable rules and laws.

so Public Officials and Employees of the Nation shall at all times conduct themselves as to reflect credit upon the Chickasaw Nation and government and comply with all applicable laws of the Chickasaw Nation with respect to their conduct in the performance of the duties of their respective office or Employment.

B. General prohibitions; Conflicts of Interest.

1. No Public Official or Employee of the Nation shall use, attempt to use, or appear to use or attempt to use, any official or apparent authority of their office or duties

which places, or could reasonably be perceived as placing, their or their Immediate Family's private economic gain or that of any special Business interests with which they are associated, before those of the Nation whose paramount interest their office or Employment is intended to serve.

2. It is the intent of this subsection that Public Officials and Employees of the Nation of the Chickasaw Nation avoid any action, whether or not specifically prohibited herein, which could result in, or create an appearance of:

- a. using Public Office for private gain;
- b. giving preferential treatment to any person or special interest organization;
- c. impeding governmental efficiency or economy;
- d. losing or compromising complete independence or impartiality of actions;
- e. making a government decision outside official channels; and/or
- f. adversely affecting the confidence of Chickasaw Citizens in the integrity of the government of the Chickasaw Nation.

C. Use of confidential information for private gain.

No Public Official or Employee of the Nation shall use or disclose Confidential Information gained in the course of, or by reason of, their official position or activities to further their private Economic Interest or personal interest or that of anyone else.

D. Restrictions against incompatible interests or employment.

1. Public Officials and Employees of the Nation shall not:

- a. have direct or indirect financial or other Economic Interests nor engage in such other Employment or economic activity which, as determined in accordance with the provisions of this Act and other applicable laws of the Chickasaw Nation, necessarily involves inherent substantial conflict, or has the appearance of involving such inherent substantial conflict, with their responsibilities and duties as Public Officials or Employees of the Nation of the Chickasaw Nation; nor

b. engage in, directly or indirectly, financial or other economic transactions as a result of, or primarily depending upon, information obtained through their Public Office or Employment; nor

c. acquire any economic or other financial property, contractual or other Economic Interest at a time when they believe, or have reason to believe, that it will directly and substantially affect or be so affected by their official actions or duties.

2. Subject to the restrictions and conditions set forth herein, Public Officials and Employees of the Nation are free to engage in lawful financial transactions to the same extent as the general public. Governmental Bodies may, however, adopt further approved restrictions upon such transactions or Employment, as authorized herein and by other applicable laws of the Nation, in light of special circumstances or the particular duties of such Public Official or Employee of the Nation.

3. No Business or Governmental Body shall employ a Public Official or Employee of the Nation if such Employment is prohibited by or otherwise violates any provision of this Act.

4. The term "Employment" within the meaning of this subsection includes professional services and other services rendered by a Public Official or Employee of the Nation, whether rendered as an Employee, Consultant or other independent contractor.

E. Appropriate actions in case of conflict of interest.

1. When a Public Official or Employee of the Nation is required to take official action on a matter in which such Public Official or Employee of the Nation has a personal Economic Interest, they should first consider eliminating that interest. If such is not feasible nor required under subsection D above, such Public Official or Employee of the Nation shall:

a. prepare and sign a written statement describing the matter requiring action and the nature of the potential conflict for inclusion in the official record of any vote or other decision or determination and also for the information of the Commission, immediately upon becoming aware of such matter and potential conflict;

b. abstain from voting, sponsoring, influencing or in any manner attempting to influence any vote, official decision or determination which would favor or advance such person's personal Economic Interest in such matter; and

c. abstain from voting or otherwise participating in an official vote,

decision or determination of such matter, unless otherwise directed by the authorized residing official of the Governmental Body making such decision or determination, or as otherwise required or allowed by applicable law.

2. Unless otherwise required or allowed by applicable law, the abstention by such Public Official or Employee of the Nation from voting or otherwise participating in an official decision or determination of a matter shall not affect the presence of such Public Official or Employee of the Nation for purposes of establishing a quorum necessary for a Governmental Body to take action of voting, deciding or determining such matter.

3. Employees of the Nation shall also deliver a copy of such statement described in subsection 1.a. above to the Commission and to their immediate superior who shall assign the matter to another. If such Employee has no immediate superior, he or she shall take such steps as the Commission shall prescribe or advise to abstain from influencing actions and decisions in the matter.

4. In the event that a Public Official's or Employee of the Nation's participation is otherwise legally required or allowed for the action to be made, such Public Official or Employee of the Nation and appropriate Public Official or immediate superior requiring such participation shall fully report the occurrence to the Commission.

F. Tribal governmental contracts; restrictions and bid requirements.

No Public Official or Employee of the Nation, or any member of such person's Immediate Family, shall be a party to, nor have an interest in, the profits or benefits of any governmental contract or be the recipient of investment by the Chickasaw Nation, unless the contract or the investment meets the following requirements:

a. the contract or investment is let by notice and competitive bid or procurement procedures as required under all applicable laws, rules, regulations and policies of the Nation or other appropriate agency for materials or services for the Governmental Body or entity involved;

b. the entire transaction is conducted at arm's length with the Governmental Body's full knowledge of the interest of the Public Official or Employee of the Nation or a member of their Immediate Family;

c. the Public Official or Employee of the Nation has taken no part in the determination of the specifications, deliberations or decisions of a Governmental Body with respect to the public contract; and

d. the Public Official or Employee of the Nation is not a member, office holder, Employee or otherwise directly associated with the same Governmental Body or entity primarily responsible for letting, performing, receiving, regulating or otherwise supervising the performance of the contract.

G. Restrictions on assisting or representing other interests before Governmental Bodies for compensation.

1. Public Officials or Employees of the Nation shall not use their Employment related contracts, relationships or dignity of their office to represent or advocate any interests or persons before any decision-making Governmental Body for payment or other form of Compensation or Income by any entity, interest or person. This section shall not be construed to prohibit the duties of elected or appointed Public Officials to represent their constituents' interests before Governmental Bodies nor the performance of Ministerial Actions. It does, however, for example, prohibit representation of non-Citizens' interests for any fee or Compensation or Income in seeking to obtain any legislation, contract, payment of any claim or any other governmental benefit.

2. Nothing in this Act shall prevent a former Public Official or Employee of the Nation from appearing and giving testimony under oath, nor from making statements required to be made under oath, nor from making statements required to be made under penalty of perjury, nor from making appearances or communications concerning matters of a personal and individual nature which pertain to such former Public Official or Employee of the Nation or are based upon such person's own special knowledge of the particular subject involved, not otherwise privileged from disclosure by other applicable law; and provided further, that no Compensation or Income is thereby received other than that which is regularly provided for witnesses by law or regulation.

3. The Nation, its Governmental Bodies and political subdivisions shall not enter into any contract with, nor take any action favorably affecting or economically benefitting in any manner differently from members of the public at large, any person, Business, or Governmental Body, which is assisted or represented personally in the matter by a Public Official or Employee of the Nation or directly contributed to the making of such contract or taking of such action by the Nation or any Governmental Body or political subdivision thereof.

4. Nothing contained in this section shall prohibit a former Public Official or Employee of the Nation from being retained or employed by a Governmental Body.

H. Unauthorized Compensation or Income or benefit for official acts.

1. No Public Official or Employee of the Nation shall accept or receive any benefit, favor or other form of Compensation or Income for performing the official duties of their office or Employment, beyond the amount or value which is authorized and received in their official capacity for performing such duties.

2. This section shall not be construed to prohibit the receipt of authorized Compensation or Income for the performance of other distinct and lawful public duties by Public Officials or Employees of the Nation.

3. No Public Official or Employee of the Nation, however, shall accept any benefit, favor or other form of Compensation or Income for the performance of the duties of any other office or Employment not actually performed or for which such Public Official or Employee of the Nation is not otherwise properly authorized or entitled to receive.

I. Unauthorized personal use of property or funds of the Nation.

No Public Official or Employee of the Nation shall use any property of the Nation or any other public property of any kind for any use other than as authorized and approved for official purposes and activities. Such persons shall properly protect and conserve all such property, equipment and supplies which are so entrusted, assigned or issued to them.

J. Staff misuse prohibited.

Public Officials and Employees of the Nation shall only utilize Employees of the Nation and staff only for the official purposes for which they are employed or otherwise retained.

K. Nepotism prohibited.

No Public Official or Employee of the Nation shall employ, elect, appoint, or otherwise cause to be employed, nor nominate, nor otherwise influence the appointment or Employment to any Public Office or position with the Nation or any Governmental Body or political subdivision thereof, any person or persons related by Consanguinity or Affinity within the third degree, nor any Immediate Family member of said Public Official or Employee of the Nation. Assignment of such persons to duties, positions, governmental offices or other entities shall in all instances be made in strict compliance with the provisions of the Personnel Policies and Procedures of the Nation, as amended from time to time.

L. Retaliation prohibited.

1. Retaliation against any party or witness to a complaint is hereby prohibited. Retaliation shall include any unjustified or unsubstantiated form of adverse or punitive action

against a complainant, party or witness in an ethics-related cause of action brought before the Commission. Retaliation is considered an ethics violation in and of itself. Protection against retaliation shall also be afforded to any person(s), including Commission members and staff, offering testimony or evidence or complying with directives of the Commission.

2. Any violations of this section shall be subject to penalties as defined herein, as well as obstruction and contempt violations of both the civil and criminal codes of the Nation, where applicable.

M. Restrictions against gifts or loans to influence official acts.

Except as otherwise provided herein or by applicable rule or regulation adopted hereunder by the Chickasaw Tribal Legislature or by other applicable law, no Public Official or Employee of the Nation shall solicit or accept for themselves or another, any Gift, including economic opportunity, favor, service, or loan (other than from a regular lending institution on generally available terms) or any other benefit of an aggregate monetary value of one hundred dollars (\$100.00) or more in any calendar year, from any person, organization or group which:

a. has, or is seeking to obtain, contractual or other Business or financial relationships or approval from any Governmental Body, office or entity with which the Public Official or Employee of the Nation is associated or employed; or

b. conducts operations or activities which are regulated or in any manner supervised by any Governmental Body with which the Public Official or Employee of the Nation is associated or employed.

N. Permitted gifts, awards, loans, reimbursements and campaign contributions.

Subsection L. above shall not be construed to prohibit:

a. an occasional non-pecuniary Gift, insignificant in value;

b. gifts from, and obviously motivated by, family or social relationships, as among Immediate Family members or family inheritances;

c. food and refreshments customarily made available in the ordinary course of meetings where a Public Official or Employee of the Nation may properly be in attendance;

d. an award or honor customarily and publicly presented in recognition of public service;

e. a political campaign contribution, in accordance with all applicable election laws and provided that no promise or commitment regarding the official duties of office or Employment is made in return for such contribution.

f. gifts of any large value made to the Chickasaw Nation.

O. Adoption of supplemental codes of conduct for Public Officials and Employees of the Nation.

The chief executive or administrator of every Governmental Body or subdivision of the Nation which is subject to the provisions of this Act is authorized to submit for approval through their chain of command such supplemental rules, regulations and standards of conduct for Public Officials and Employees of the Nation of such entity, which are necessary and appropriate to the special conditions relating to their particular functions, purposes and duties, provided such are not in conflict with the purposes and other provisions of this Act. Upon adoption, such supplemental standards rules and regulations shall be implemented in the same manner and to the extent applicable, as are all other standards, rules and regulations provided and adopted in accordance with the provisions of this Act.

SECTION 2-702.6

SANCTIONS; PENALTIES; LEGAL LIABILITIES.

A. Administrative sanctions.

1. Upon finding that there has been an ethical violation, the Commission may recommend any single, a combination or all of the following penalties or sanctions, depending upon the severity of the violation:

a. For Public Officials, recommendation for reprimand, removal, discharge, termination of Employment or recommendation for consideration of impeachment from Public Office in accordance with the Constitution and applicable Chickasaw law and procedure. For candidates for Public Office, any remedies provided elsewhere in the Code of the Chickasaw Nation.

b. For Employees of the Nation, recommendation for discipline, including suspension without pay or other benefits and dismissal as provided by other laws, regulations and personnel policies or procedures applicable thereto.

c. For Public Officials and Employees of the Nation, issuance of a private reprimand, which shall be entered into such person's permanent record of

Employment or office and upon the permanent record of the Public Office or entity of which such person is a member or Employee of the Nation, in accordance with provisions of applicable Chickasaw law and procedures.

d. For Public Officials and Employees of the Nation, issuance of a written public reprimand, which shall be entered into such person's permanent record of Employment or office and upon the permanent record of the Public Office or entity of which such person is a member or Employee of the Nation, according to provisions of applicable Chickasaw law and procedures or in the Chickasaw Times Newspaper.

2. No sanctions or penalty provided herein shall limit any other powers of the Judicial, Executive or Legislative Departments of tribal government, nor of any other Governmental Body or entity nor administrative officials or Employees of the Nation under other applicable law, rules, regulations or procedures.

B. Other civil damages.

1. Any person subject to this Act found in violation may be further subject to, and personally liable for, the following provisions, without regard to the imposition of any administrative sanction or criminal conviction:

a. imposition of restitution for amount of actual damages or such other civil penalties as hereinafter provided; and/or

b. imposition of civil damages in an amount not exceeding three (3) times the amount or actual value of the benefit(s) so obtained.

2. If two (2) or more Public Officials or Employees of the Nation are responsible for any violation, each of them may be liable to the Nation for the full amount of any restitution and/or civil damages described above, the full amount of which may be imposed upon and collected from each one of them individually or jointly with others.

3. Any civil penalties imposed hereunder shall be collected in any manner authorized for recovery of debts or obligations owed to the Nation and shall be paid into the court fund of the Nation.

4. No imposition of any or all civil damages provided herein shall prohibit the institution of any other civil or criminal action, liability, judgment, conviction or punishment otherwise applicable thereto, nor shall determination of any such civil damages be barred thereby.

5. Any person knowingly and willfully filing any complaint authorized under this Act or by any other applicable law, without just cause or good faith belief and with malice or other improper purpose, including personal, political or other harassment or embarrassment, shall be guilty of a civil offense and for such offense may be fined up to \$500.00 per occurrence.

SECTION 2-702.7

SEVERABILITY.

If any provision of this Act or the application of such provision to any person, firm, association, corporation or circumstances shall be held invalid, the remainder of this Act, and the application of such other provisions than those as to which are held to be invalid, shall not be affected thereby.

SECTION 2-702.8

PRIOR LAW AND POLICIES SUPERSEDED.

Section 2-702.05, Paragraph O. herein notwithstanding, upon the effective date of this Act, all prior enactments, laws, rules, policies, ordinances and regulations of the Chickasaw Nation and its Governmental Bodies are superseded hereby and/or amended to comply herewith.

SECTION 2-702.9

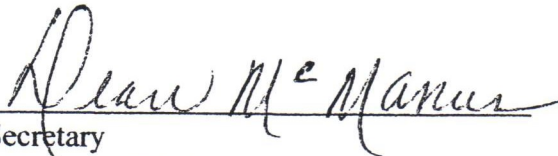
EFFECTIVE DATE.

The effective date of all provisions of this Act as promulgated herein shall be the _____ day of _____, 200__.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 15, 2002, by a vote of 12 ayes, 1 nays, 0 abstentions.

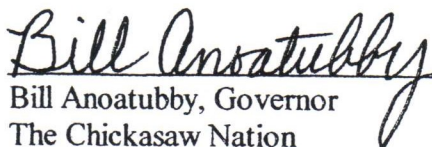


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 15 2002

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-015

**Title 2, Chapter 7, Article B of the Chickasaw Nation Code
(Chickasaw Nation Ethics in Government Act)**

Explanation: This resolution approves a code of standards for ethical conduct by elected officials and employees of the Chickasaw Nation..

Requested By: Linda Briggs, Chairperson
Ethics Ad Hoc Committee

Presented By: Wanda Blackwood Scott, Chairperson
Legislative Committee